LOGISTICS

UNITED STATES POSTAL SERVICE

June 8, 1995

Area Managers, Human Resources
Managers, Distribution Networks
Managers, Transportation and Networks
Managers, Vehicle Maintenance Facilities
Managers, Plant Maintenance
Area OHNAs

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MOTOR VEHICLE DIVISION APWU

SUBJECT: Common Questions Answered -- DOT Drug & Alcohol Rule

Some of the following questions distributed in our March 31 letter generated additional queries. For clarification purposes and ease of information access, we are sending out the identical letter with changes/additions in bold italics. We are also in the process of updating the Management Instruction (MI) to correspond with recent changes. The MI will be distributed when available. Until then, a draft MI is attached. Changes are in italics.

1. Q: What are the consequences if an affected employee refuses to test?
   A: If an employee refuses to test, it is treated as a positive test and the employee is treated the same as if s/he had tested positive. There is no suspension of the Commercial Driver's License for testing positive. ***If an employee refuses a drug test, they will be treated as if they had tested positive for drugs and Appendix F (new) will be followed. If an employee refuses an alcohol test, the employee will be treated as if they had tested at the .04 BAC or greater level and Appendix D will be followed.***

2. Q: Two breath tests are required to determine if a person has a prohibited alcohol concentration. Will the person conducting the test use one or two evidential breath testing devices?
   A: One machine is used. The machines are calibrated daily as well as after a positive test.

3. Q: If the test is positive, may an employee use annual leave or sick leave?
   A: Initially, an employee who tests positive ***for drugs or for alcohol at the .04 or greater level*** will be placed in an emergency off-duty status. The employee may apply for annual or sick leave after the initial appointment with the Substance Abuse Professional (SAP) has been actively involved or waiting for entry into a rehabilitation program. ***For the employee who tests positive for alcohol in the .02 - .039 BAC range, there will be no opportunity to take approved leave. That employee will be placed in an emergency off-duty status, without pay, as specified in the Management Instruction and in concert with Article 16.7 of the National Agreement.***

4. Q: Will the Postal Service allow employees who test positive for drugs or alcohol concentration above .04 and are in a rehabilitation program work in a non safety-sensitive assignment?
   A: This management decision will depend on the type of rehabilitation program and the availability of non safety-sensitive work. The employee would need to successfully complete the return-to-duty requirements listed in the Management Instruction (Appendices D and/or E/F as applicable) at minimum.

5. Q: A driver is advised that s/he must report for an alcohol and drug test within two hours of an accident. Will the driver stay on the clock until after the test, no matter how long it takes? Will the driver be given a drug and an alcohol test?
   A: The driver will remain on the clock until the tests are administered. Both tests will be given.

6. Q: If an employee is sent for reasonable suspicion testing, and tests negative for alcohol, why would the employee be placed in a non-duty status?
   A: Reasonable suspicion testing is testing for both alcohol and drug abuse. An employee that tests negative for alcohol may instead be under the influence of an illegal substance. It would be imprudent to allow that employee access to their safety-sensitive job. That is also why the employee would remain in a non-duty status until the results of the drug test are returned.

7. Q: Who are the contact people for this program?
   A: Field personnel should contact local management in the specific field of inquiry. This may be the local Transportation Manager, VMF Manager, Labor Relations Manager, District Occupational Health Administrator (OHNA), or the District EAP Coordinator. Field management may contact USPS Headquarters for issues that need clarification or cannot be resolved at the local level. At the national level, the contacts are Bob Bodziock (202-268-3553) for Transportation, Colin Dunning (202-268-3575) for Vehicle Maintenance, Tom Valenti (202-268-3831) for Labor Relations, Dr. David Reid III (202-268-3697) for Medical, and Dr. John Kurutz (202-268-3729) for the Employee Assistance Program.

8. Q: In a return-to-duty situation, will the employee take both an alcohol and drug test?
   A: If the employee tested positive for alcohol, s/he will be required to take a return-to-duty alcohol test. If the employee tested positive for drugs, s/he will be required to take a return-to-duty drug test.

9. Q: If an employee is selected randomly for both a drug and alcohol test, will these be administered on the same day?
   A: Yes.

10. Q: On the Breath Alcohol Testing (BAT) form, is refusal of the employee to sign considered a positive test? Is this the law?
    A: There are two places for the testing employee to sign on the BAT form. Refusal in Step 2 will be regarded as refusal to take the test, which will be treated as a positive test. This is the law. A refusal by the testing employee to sign in Step 4 will not be considered a refusal to test.

11. Q: Do our employees have to initial a log book, or do all our Evidential Breath Testing (EBT) devices have a printer?
    A: All our EBT devices are equipped with printers.

12. Q: Will union representatives be allowed to accompany employees going for testing?
    A: No.

13. Q: Will employees be allowed to use their annual or sick leave after testing positive?
    A: Once an employee has a scheduled appointment with the SAP s/he will be allowed to use annual or sick leave.

14. Q: If an employee is mandated by a SAP to attend a treatment facility, who pays?
    A: The employee attending the treatment facility is responsible for payment. S/he may be assisted in this by their personal insurance.

15. Q: How would a Last Chance Agreement work if an employee slips and voluntarily turns himself in to EAP or seeks treatment outside the Postal Service?
    A: An employee who has returned to work under the provisions of a Last Chance Agreement will be terminated if s/he tests positive during a random or follow-up test.

16. Q: If an employee feels s/he has a drug or alcohol problem and voluntarily goes to EAP for help, will this employee be disciplined under Article 16 for drug and alcohol use?
    A: An employee that is required to have a CDL to perform their job function would be treated as a positive test employee until s/he can return to work under the requirements outlined in the MI. ***According to Article 35 of the National Agreement, "An employee's voluntary participation in the EAP for assistance with alcohol and/or drug abuse will be considered favorably in disciplinary action proceedings."***

17. Q: When a SAP conducts an assessment, will it always be face to face with the employee?
    A: In a guidance letter from the United States DOT Office of the Secretary of Transportation (October 11, 1994), the DOT's interpretation of its regulations states, "face-to-face interaction between a SAP and an employee is an essential part of the evaluation our rule requires . . . . Consequently, an evaluation consisting solely of contact by telephone, computer, fax, correspondence, etc. is not permitted under our rules. Direct, personal, face-to-face interaction is mandatory." The Postal Service will comply with this ruling.

18. Q: What is the experience criteria for a SAP who is a psychologist or social worker?
    A: The experience level requirement is the same for other SAPs. See attached qualification descriptions.

19. Q: What will be the training program for the SAP?
    A: It is not necessary to train the SAPs in assessment as they were hired for their expertise in making assessments in the normal course of their counseling activities. All SAPs providing service to the Postal Service have been provided information packets detailing the procedures to follow for the USPS.

20. Q: How many SAPs will the Postal Service have?
    A: The U. S. Public Health Service will provide at least two SAP qualified professionals for each USPS district.

21. Q: How many SAPs are currently qualified?
    A: As of March 7, 1995, there are 160 qualified SAPs available throughout the Postal Service. A list is attached.

22. Q: What is the maximum time an employee must wait for a SAP assessment after testing positive for alcohol and/or drugs?
    A: In a worst case scenario, it could take several days.

23. ***Q: What happens if an employee cannot or does not provide the required amount of urine for a drug test?***
    A: If the employee refuses to supply adequate specimen, it will count as a positive test. The employee will be provided six fluid ounces each 1/2 hour for a total of 24 fluid ounces over a two-hour period. If the employee is still unable to provide an adequate specimen, the employee will be evaluated by the MRO to determine if the reason for non supply is medical.

The initialization and implementation of this program have gone well. This is due to your efforts. Once again, thank you for your continued enthusiastic support of this program. Please address your questions and/or comments to the appropriate Field or Headquarters contact.

J. Michael Krop
Acting Manager
Modal Operations & Requirements

Dr. David Reid III
National Medical Director

Attachments

cc: Mr. Orlando, Manager, Logistics
Mr. Dunning, Manager Vehicle Maintenance
Mr. Jacobs, Manager, Field Human Resource Policy
Dr. Kurutz, Employee Assistance Program
Ms. Ong, Labor Relations
Mr. Spates, Manager, Delivery
Mr. Valenti, Labor Relations
Vehicle Program Analysts - Area Offices